

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Monday, September 28, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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17CV-02586	Victor Arteaga, et al vs State of California, et al.
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Order to Show Cause Re: Dismissal - Notice of Settlement

Appearance required.

Order to Show Cause Re: Sanctions

Appearance required.

18CV-04324	Joayne Melo vs David Nervino et al.
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Order to Show Cause Re: Dismissal - Notice of Settlement

CONTINUED pursuant to the declaration of counsel filed September 15, 2026, to December 1, 2026, to allow time for the final steps necessary for settlement to be completed.

26CV-03081

Jovani Gaytan-Paez vs Razzari CDJR, et al.

Petition to Compel Arbitration and Stay Proceedings

Appearance required. Petition to compel arbitration is DENIED. The arbitration agreement is procedurally and substantively unconscionable and therefore unenforceable. (See, *Phan v. Knight Sacramento SU Inc.* (2026) 121 Cal.App.5th 641.)

26CV-03182

Michelle Rojas, et al. vs The Regents of the University of California, et al.

Demurrer to Plaintiff's Complaint

The demurrer is SUSTAINED WITH LEAVE TO AMEND, on the basis of failure to state facts sufficient to constitute a cause of action.

For example, and not exhaustive, although the complaint alleges various violations, the complaint fails to allege with sufficient facts the actual individual harm caused by the alleged violations as well as sufficient facts that Defendants knowingly caused the harm.

Leave to amend has been requested. As the complaint does not show on its face that it is incapable of amendment, leave to amend is granted.

Plaintiff is to file an amended complaint within ten (10) days of this Court's order.

26CV-04746

Kayla Lorenzo vs Stephanie Martinez

Order to Show Cause Re: Restraining Order

Appearance required. Proof of timely personal service of the notice of hearing and temporary orders on Respondent was filed on September 16, 2026.
